

2:00 PM

LINE 12

24-CLJ-06163

LAWYERS TITLE COMPANY VS. PAUL NARCISSE, ET AL.

LAWYERS TITLE COMPANY
PAUL NARCISSE

JOSETTE D JOHNSON

LAWYERS TITLE COMPANY'S MOTION FOR ORDER DISCHARGING STAKEHOLDER FROM LIABILITY; AND AWARD OF ATTORNEYS FEES AND COSTS

TENTATIVE RULING:

Plaintiff Lawyers Title Co.'s Unopposed Motion for Order Discharging Stakeholder from Liability and Award of Attorney's Fees and Costs is GRANTED.

"[W]henver conflicting claims are or may be made upon a person for or relating to personal property ... , such person may bring an action against the conflicting claimants to compel them to interplead and litigate their several claims." (Code of Civ. Proc., § 386, subd. (a).) "In an interpleader action, the court initially determines the right of the plaintiff to interplead the funds; if that right is sustained, an interlocutory decree is entered which requires the defendants to interplead and litigate their claims to the funds." (*Shopoff & Cavallo LLP v. Hyon* (2008) 167 Cal.App.4th 1489, 1513.)

Plaintiff Lawyers Title Co. ("LTC") presents evidence showing it served as escrow holder for a transaction between Defendants Paul Narcisse and Rina Narcisse (collectively, "Buyers") and Defendants David Stariha and Bernadette Romero (collectively, "Sellers"), where (1) Buyers cancelled the contract and attempted to retrieve the \$17,500.00 held by LTC and (2) Sellers objected and refused to agree to the disbursement of the funds to Buyers. (Mar. 20, 2026 Declaration of Ron Dechaine, ¶¶ 2–6.) Escrow holders in such transactions have long been held to be neutral stakeholders with a right to interplead the buying and selling parties and be dismissed. (See *Pacific Loan Mgmt. Corp. v. Superior Court* (1987) 196 Cal.App.3d 1485, 1490.)

The subject funds have already been deposited with the Court (see Oct. 4, 2024 Order, p. 3), and there is no opposition to LTC's request to be discharged or its request that the remaining parties be enjoined from instituting any other proceeding regarding the rights and obligations between themselves and between LTC (see Code Civ. Proc., § 386, subd. (f)).

LTC also requests for an award of attorney fees and costs to be paid out of the deposited funds. When ordering the discharge of the interpleading plaintiff, "the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a); see, e.g., *Southern California Gas Co. v. Flannery* (2016) 5 Cal.App.5th 476, 487.)

LTC supports its request for fees and costs with evidence showing it has incurred \$7,437.50 in reasonable attorney fees for the services of its former counsel in this interpleader matter, \$1,600.00 in attorney's fees for the services of its present counsel, and \$1,029.40 in costs, for a total of \$10,066.90. (Mar. 20, 2026 Declaration of Josette D. Johnson, ¶¶ 3–7, exh. B.) There is also no opposition to this request; while the Sellers' respective answers to the Complaint object to the costs of serving process on Sellers, costs of service are recoverable costs of a prevailing party and the answers do not establish any basis to deny such costs. Based upon its experience as a lawyer and trial judge, the court finds the hourly rates and time expended reasonable. (*Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-1114.)

Accordingly, the motion is granted.

Additionally, the court sets a hearing to determine how to distribute the deposited funds for September 22, 2026 at 2:00 p.m. in Department 4. Pursuant to Civil Code section 2924j, subdivision (d), the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein. The court will consider all claims filed at least 15 days before this hearing.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 13

24-CLJ-07826

BANK OF AMERICA, N.A. VS. ASHWIN L SINGH

BANK OF AMERICA, N.A.
ASHWIN L SINGH

BRIAN LANGEDYK
PRO SE

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING:

The court GRANTS plaintiff Bank of America, N.A.'s unopposed motion to deem facts admitted.

The court notes that the notice states that the hearing will be held on the First Floor, Room A of 400 County Center, Redwood City, CA 94063, but Room A is the clerk's office. Department 4 is located in Courtroom 4C on the fourth floor.

On January 22, 2025, plaintiff served by mail defendant Ashwin L. Singh with requests for admissions. (Declaration of Audrey Calderson, ¶ 2, Ex. 1.) More than thirty-five days have passed and there have been no responses. Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
